

April 6, 2026

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VIA CERTIFIED MAIL

Franciscus Dylan Rosario
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RE: ROSARIO v CSAA INSURANCE EXCHANGE, et al.
San Francisco County Superior Court, Case No. CGC-25-631802
Meet & Confer re Demurrer and Motions to Strike

Mr. Rosario:

Please accept this correspondence as an attempt to meet and confer regarding the deficiencies in your First Amended Complaint (“FAC”) against the Defendant CSAA INSURANCE EXCHANGE (“Defendant” or “CSAA”). My office represents CSAA in this action.

I understand that you do not have an attorney representing you in this case. If that changes, at any point, please make sure that I am immediately made aware, and I will then direct all correspondence through your attorney.

I also must extend to you an offer to engage in a meet and confer phone call on the topics addressed in this letter and my office’s anticipated demurrer and motions to strike (per Code Civ. Proc. §§ 436; 425.16. The deficiencies on the face of your FAC, filed on February 25, 2026, are subject to a demurrer and motions to strike pursuant to California Code of Civil Procedure §§ 430.10; and 436.

Both Causes of Action: 1) Fraud; and 2) Violations of the UCL are Legally Unsupportable against CSAA

There are several legal and factual bases for Defendant to demurrer/move to strike your FAC. Those several bases will be listed herein, with a short description of the relevance of each objection.

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1) Protected Litigation Conduct:

All your factual allegations against my client, CSAA, squarely target protected litigation conduct under Civil Code § 47(b) and Code Civ. Proc. § 425.16 and your claims against CSAA are therefore barred as a matter of law. As you know, your factual allegations target the underlying defense of your personal injury lawsuit and jury trial. Judgment in that jury trial was entered in April 2025, after the jury rendered a defense verdict. All your FAC's allegations focus on the litigation activity, conduct, and communications on the part of CSAA and its retained insurance defense counsels. This is in violation of black letter California law, shielding CSAA from such legally unsupportable and duplicative litigation.

Furthermore, your FAC's unlawful targeting of such privileged conduct justifies my clients filing a Special Motion to Strike under Code Civ. Proc. § 425.16. As you may be aware, this so-called Anti-SLAPP motion, and legal authorization for that motion, requires the recovery of attorneys' fees and costs in the event that CSAA prevails on its Anti-SLAPP motion. I assure you, my office will file an Anti-SLAPP motion, should you not withdraw these pleadings, and my client will vigorously seek recovery of its attorneys' fees and costs in defending against this lawsuit.

2) The Statute of Limitations Precludes Your Claim.

The statute of limitations for a claim under the California Unfair Competition Law (UCL), codified in Cal Bus & Prof Code § 17200, is four years. Meanwhile, the statute of limitations for fraud claims in California is three years, as provided under Cal Code Civ Proc § 338. It is also true that “[t]he cause of action... is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.”.) *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472. “To excuse failure to discover the fraud within three years after its commission, a plaintiff also must plead “facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry. To that end, a plaintiff must allege facts showing the time and surrounding circumstances of the discovery and what the discovery was.” (*Ibid.*)

Here, the FAC fails to properly allege timeliness on either the UCL claim or the fraud claim. Factually, the FAC alleges that CSAA's “Liability-Claim Denial Letter” (*FAC* ¶ 1) was false when issued, in February of 2021. (*FAC* ¶ 4). However, you proceeded to litigate the underlying case from 2021 – 2025, culminating in a jury verdict. The FAC fails to allege any “facts showing the time and surrounding circumstances of the discovery and what the discovery was.” *Cansino, supra*, 224 Cal.App.4th at 1472.

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3) No Standing

Mr. Rosario, you lack standing to sue CSAA. As you are well aware, CSAA was the insurance carrier for a third-party insured, Mr. Abdelhalim, whom you sued, and lost. That makes you a third party to CSAA and its counsels. “As a general rule, a third party may directly sue an insurer only when there has been an assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268) (emphasis added). Here, you obtained neither an assignment from, nor judgment against, the Insured, Mr. Abdelhalim. Therefore, you do not have standing to sue CSAA and this effort to do so is improper and subject to demurrer.

4) This Court has No Jurisdiction (Code of Civ. Proc., § 430.10(a).)

Code Civ. Proc. § 904.1(a) provides: that “[a]n appeal, other than in a limited civil case, is to the court of appeal,” including from “a judgment.” This Court does not have jurisdiction to hear an appeal of this Court’s own prior entry of judgment. The entire FAC in reality is an unlawful and improper “appeal” at the Superior Court level, masquerading as a new lawsuit. This justifies demurrer.

5) Another Action Pending (Code of Civ. Proc., § 430.10(b).)

As above, your pending appeal justifies demurrer under this subdivision as well.

6) The pleading fails to allege facts sufficient to constitute any cause of action against Defendants. (Code of Civ. Proc., § 430.10(e).)

For a host of reasons, you have not alleged sufficient facts to constitute a cause of action against CSAA. For one, you have not pled fraud with the required level of “particularity.” Each element [of fraud] must be alleged with particularity.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1059–1060). Your FAC falls short of this requirement. Nowhere does your FAC purport to plead the actual “misrepresentations” made by CSAA to the Court, or anyone else. In fact, all the key allegations of “misleading representations” in your pleading target PSA, not my clients.

7) The FAC “is uncertain” (Code of Civ. Proc., § 430.10(f).)

Your pleading is unintelligible and ambiguous insofar as it cannot possibly constitute a cause of action against my clients. Your true remedy is an appeal, which you have already filed. This new lawsuit is completely legally unsupportable and frivolous.

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8) Collateral Estoppel

“A collateral attack is an attempt to avoid the effect of a judgment or order made in some other proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v. Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) “An attack in a second action on an earlier judgment is collateral.” (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) “A judgment of a court of general jurisdiction can only be set aside on collateral attack if the judgment is void on the face of the record.” (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, “collateral estoppel precludes relitigation of issues argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

Here, your FAC’s entire effort is to relitigate all the same issues presented in his underlying case—including CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1); the alleged falsity of that letter (*FAC* ¶ 4); CSAA’s “Fund[ing] and Direct[ing] [of] the Defense” (*FAC* ¶ 22F); and the alleged other “False and Misleading Representations” CSAA allegedly made to the Court while maintaining its “Litigation-Stage Denial Posture.” (*FAC* ¶ 22F). All the key factual allegations against CSAA target the third-party claims denial and litigation of that denial, which culminated in a defense verdict and valid judgment. Indeed, all the issues presented in this present FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826)

Conclusion:

Based upon the above, your First Amended Complaint (“FAC”) fails to state sufficient facts to support the cause of action contained therein. I would like to offer to conduct a telephone conversation with you to discuss your FAC. On that call, I will discuss with you in greater detail the points contained in this letter, which will also be discussed in my client’s subsequent Demurrer, Motion to Strike (Code Civ. Proc. § 436), and Special Motion to Strike (Code Civ. Proc. § 425.16).

I implore you to withdraw your pleadings and dismiss this meritless lawsuit. I understand your loss at trial was difficult for you; however, if you continue in this misguided effort, my client will seek recovery of its attorneys’ fees and costs in Striking your pleadings.

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I look forward to having a telephone conference to discuss the contents of this meet and confer correspondence. Please let me know as soon as possible your availability to have a conference regarding the pleading issues identified above, prior to our deadline to file a demurrer and motions to strike, which is **Monday, April 22, 2026.**

Very truly yours,

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By Chad S. Tapp
Tyler J. O'Connell

CST/TOC/mps